

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----
PATRICE CORBETT,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
SHERLON CROMWELL SHIELD # 18950 AND
"JOHN DOES 1-3", PERSONS EMPLOYED BY
NEW YORK CITY POLICE DEPARTMENT,Defendants.

X

SUMMONS

Index No.: _____

Date Filed: _____

Plaintiff designates
Kings County
as the place of trialThe basis of venue is based on
CPLR § 504(3)

X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
January 25, 2016Philip V. Aiello
ATESHOGLU & AIELLO, P.C.
Attorneys for Plaintiff
PATRICE CORBETT
11 Park Place, Suite 1715
New York, New York 10007
(212) 545-1740
File No.: FA-7027

Defendants' Addresses:

CITY OF NEW YORK, Claim No.: 2015PI0106615
NEW YORK CITY POLICE DEPARTMENT
POLICE OFFICER SHERLON CROMWELL, SHIELD #18950

PATRICE CORBETT.

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
SHERLON CROMWELL SHIELD # 18950 AND
"JOHN DOES 1-3", PERSONS EMPLOYED BY
NEW YORK CITY POLICE DEPARTMENT.

Defendants.

X

VERIFIED COMPLIANT

Index No.:

X

1. At all relevant times, Plaintiff was and is a resident of County of Kings, City and State of New York.
2. At all relevant times, Defendant CITY OF NEW YORK (hereinafter the “City”) was and is a municipal corporation incorporated and existing under the laws of New York State.
3. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter “NYPD”) was and is an agency of Defendant City.
4. At all relevant times, Defendant CITY operated, and presently operates Defendant NYPD.
5. At all relevant times, Defendant CITY controlled, and presently controls Defendant NYPD.

6. At all relevant times, Defendant CITY managed, and presently manages Defendant NYPD.
7. At all relevant times, Defendant POLICE OFFICER SHERLON CROMWELL SHIELD # 18950 (hereinafter "P.O. Cromwell") was and is an employee of Defendant NYPD.
8. At all relevant times, Defendant P.O. Cromwell was and is an employee of Defendant City.
9. At all relevant times, Defendants "JOHN DOES 1-3" (hereinafter the "Officers") were and are employees of Defendant NYPD.
10. At all relevant times, Defendant Officers were and are employees of Defendant City.
11. At all relevant times, Defendants P.O. Cromwell and Officers were acting within their scope of employment as police officers employed by Defendant NYPD.
12. At all relevant times, Defendants P.O. Cromwell and Officers were acting within their scope of employment as police officers employed by Defendant City.
13. Defendants P.O. Cromwell and Officers, prior to November 8, 2013, were each individually hired, screened, trained, and supervised by Defendant City, including its agencies and including the Defendant NYPD and all supervisory officers of the Defendant Officers.
14. On or about April 10, 2015, Plaintiff filed a Notice of Claim (*see* Exhibit "A" annexed hereto) in accordance with General Municipal Law Sections 50(e) and (i). The Notice of Claim set forth the name and address of Plaintiff, her attorneys, the

nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

15. A hearing was conducted pursuant to General Municipal Law Section 50(h) on or about July 9, 2015.
16. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.
17. This action is being commenced within one year of the dismissal of all criminal charges against Plaintiff on January 29, 2015.
18. On or about November 8, 2013, at or near 466 East 25th Street, County of Kings, City and State of New York at approximately 7:00 a.m., Plaintiff was arrested without probable cause (hereinafter the "Arrest").
19. During the Arrest, Defendants assaulted and battered Plaintiff (hereinafter the "Assault and Battery").
20. Defendants entered the aforementioned premises without permission and illegally searched the premises and Plaintiff (hereinafter the "Search").
21. Thereafter, Defendants commenced a prosecution against Plaintiff without probable cause or justification, causing Plaintiff to be incarcerated for a period of approximately one-hundred and twelve (112) days, from November 8, 2013 to approximately February 27, 2014.
22. Said prosecution was instituted and continued with malice, bad faith and deliberate indifference to Plaintiff's rights.
23. Said action under Docket No. 2013KN086066 was dismissed and sealed on January 29, 2015 by the Honorable Miller, W. of Kings County Supreme Court.

24. At all times during the aforesaid illegal and improper Search, Arrest, Assault and Battery of Plaintiff, Plaintiff was in the custody of Defendants.
25. Plaintiff was illegally and improperly searched, arrested, assaulted and battered by Defendants through no fault or negligence of her own.
26. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day.

**AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE ARREST AND IMPRISONMENT**

27. The allegations set forth in paragraphs "1" through "26" inclusive are incorporated herein as if fully set forth.
28. Defendants P.O. Cromwell and Officers intended to cause the arrest, seizure and imprisonment of Plaintiff without a lawful warrant and without probable cause.
29. Defendants knew, or should have known, that the conduct engaged in would result in the false arrest, seizure and imprisonment of Plaintiff.
30. Plaintiff was aware of such confinement and did not consent to said confinement.
31. The aforementioned confinement was not privileged in any way and was without legal justification.
32. Defendants City and NYPD are responsible and liable for the acts of Defendants P.O. Cromwell and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

33. As a direct and proximate cause of Defendants' false arrest, seizure and imprisonment of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.
34. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SECOND CAUSE OF ACTION
FOR ASSAULT AND BATTERY**

35. The allegations set forth in paragraphs "1" through "34" inclusive are incorporated herein as if fully set forth.
36. Defendants P.O. Cromwell and Officers intended to make bodily contact with Plaintiff.
37. Defendants P.O. Cromwell and Officers knew, or should have known, that the conduct engaged in would result in assault and battery to Plaintiff.
38. Defendants P.O. Cromwell and Officers did in fact make offensive, bodily contact with Plaintiff.
39. Plaintiff was aware of such bodily contact by P.O. Cromwell and Officers and did not consent to said bodily contact.
40. The aforesaid bodily contact by Defendants P.O. Cromwell and Officers against Plaintiff was offensive to Plaintiff.

41. Said offensive, bodily contact was extreme and outrageous, which exceeded all bounds usually tolerated by a decent society.
42. Defendants City and NYPD are responsible and liable for the acts of P.O. Cromwell and Officers done within the scope of their employment under the doctrine of *respondeat superior*.
43. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.
44. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS**

45. The allegations set forth in paragraphs "1" through "44" inclusive are incorporated herein as if fully set forth.
46. That Defendants P.O. Cromwell and Officers intended to make offensive bodily contact with Plaintiff.
47. Defendants knew, or should have known, that the offensive conduct engaged in would result in assault and battery to Plaintiff.
48. Defendant P.O. Cromwell and Officers did in fact make offensive, bodily contact with Plaintiff.

49. Said offensive bodily contact was extreme and outrageous, which exceeded all bounds usually tolerated by a decent society.
50. The aforesaid extreme and outrageous conduct was performed with the intent to cause, or disregard of a substantial probability of causing severe emotional distress.
51. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish and emotional distress which had a disabling effect on Plaintiff.
52. Defendants City and NYPD are responsible for and liable for the acts of Defendants P.O. Cromwell and Officers done within the scope of their employment through the doctrine of *respondeat superior*.
53. As a direct and proximate cause of Defendants' intentional infliction of emotional distress of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.
54. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION**

55. The allegations set forth in paragraphs "1" through "54" inclusive are incorporated herein as if fully set forth.

56. That Defendants City and NYPD failed to exercise reasonable care in hiring Defendants P.O. Cromwell and Officers; therefore, breaching their duty to Plaintiff as well as to the public, to exercise reasonable care in their hiring of employees.
57. That Defendants City and NYPD should have known of the propensity of Defendants P.O. Cromwell and Officers to commit injurious acts.
58. That Defendants City and NYPD were negligent in failing to properly train and supervise its employees, more specifically Defendants P.O. Cromwell and Officers.
59. That Defendants City and NYPD are responsible and liable for the acts of Defendants P.O. Cromwell and Officers done within the scope of their employment under the doctrine of *respondeat superior*.
60. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.
61. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FIFTH CAUSE OF ACTION
FOR MALICIOUS PROSECUTION**

62. The allegations set forth in paragraphs "1" through "61" inclusive are incorporated herein as if fully set forth.

63. That Defendants arrested Plaintiff and initiated criminal proceedings despite the knowledge that Plaintiff had committed no crime. Said prosecution was instituted and continued with malice and bad faith and deliberate indifference to Plaintiff's rights.
64. That there was no probable cause for the aforesaid arrest and criminal proceedings.
65. That said malicious prosecution was terminated in favor of Plaintiff with all charges against Plaintiff being dismissed on January 29, 2015.
66. As a direct and proximate cause of Defendants' malicious prosecution of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.
67. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SIXTH CAUSE OF ACTION
FOR NEGLIGENCE**

68. The allegations set forth in paragraphs "1" through "67" inclusive are incorporated herein as if fully set forth.
69. Defendants' actions in causing the aforesaid assault, battery, arrest, seizure, imprisonment and malicious prosecution of Plaintiff were in breach of the duty of due care owed to Plaintiff. Defendants P.O. Cromwell and Officers acted negligently and in disregard for the procedures and safeguards, which are the

standard for the arrest of a citizen, in arresting Plaintiff in the absence of reasonable suspicion or probable cause. Defendants P.O. Cromwell and Officers further breached their duty of care to investigate before affecting the seizure of a citizen and in their continued prosecution of Plaintiff.

70. That Defendants City and NYPD are responsible and liable for the acts of Defendants P.O. Cromwell and Officers done within the scope of their employment under the doctrine of *respondeat superior*.
71. As a direct and proximate cause of Defendants' negligence, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.
72. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR VIOLATION OF THE UNITED STATES CONSTITUTION
42 U.S.C. §1983 AND NEW YORK CONSTITUTION**

73. The allegations set forth in paragraphs "1" through "72" inclusive are incorporated herein as if fully set forth.
74. As a direct result of the acts, omissions, and policies of Defendants, P.O. Cromwell and Officers acting under color of State Law caused Plaintiff, a citizen of the United States and resident of the State of New York, to be deprived of her rights, privileges,

and immunities guaranteed under the First, Fourth, Eighth and Fourteenth Amendments of the United States Constitution and 42 U.S.C. §1983.

75. The above actions of Defendants resulted in Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from assault to her person;
- b. Freedom from battery to her person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process;
- f. Freedom from unlawful imprisonment;
- g. Freedom from loss of liberty.

76. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights protected under the First, Fourth, Eighth and Fourteenth Amendments of the United States Constitution.

77. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of her rights, privileges, and immunities guaranteed under Article 1, Section 8 of the New York Constitution.

78. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of her rights, privileges, and immunities guaranteed under Article 1, Section 12 of the New York Constitution.

79. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of her rights, privileges, and immunities guaranteed under New York

Common Law to be free from false arrest, false imprisonment, assault and battery, and malicious prosecution.

80. As a direct and proximate cause of Defendants' violations of the United States Constitution 42 U.S.C. §1983 and New York Constitution, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

81. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages and for Plaintiff's attorney's fees.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHERLON CROMWELL SHIELD # 18950 AND "JOHN DOES 1-3", PERSONS EMPLOYED BY NEW YORK CITY POLICE DEPARTMENT individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
January 25, 2016



Philip V. Aiello
ATESHOGLU & AIELLO, P.C.
Attorneys for Plaintiff
PATRICE CORBETT
11 Park Place, Suite 1715
New York, New York 10007
(212) 545-1740
File No.: FA-7027

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

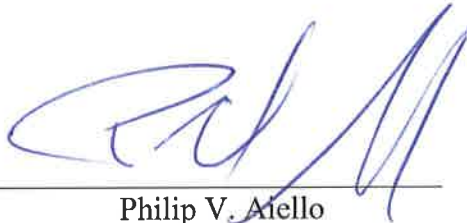
I am a member of Ateshoglou & Aiello, P.C., the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Ateshoglou & Aiello, P.C. maintains its offices.

Dated: New York, New York
January 25, 2016


Philip V. Aiello